

21STLC01780 21STLC01780

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-07-28

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Case Number: 21STLC01780 Hearing Date: July 28, 2026 Dept: 731

[TENTATIVE] ORDER RE:

Moving Party: Cross-Complainant, Michellei Cephus

Opposing Party: Cross-Defendant, Robert Bare dba BARE LAW

Notice: OK

Background Facts

Plaintiff/Cross-Defendant Robert

Bare d/b/a BARE LAW ("Mr. Bare") sues Defendant/Cross-Complainant Michellei Cephus ("Ms. Cephus") pursuant to a February 4, 2021, Complaint alleging a single cause of action for breach of contract arising from allegations that Ms. Cephus failed to pay for legal services rendered by Mr. Bare in a separate legal action (the "underlying action") and owes Mr. Bare \$3,475 in fees related thereto.

In turn, Ms. Cephus sues Mr. Bare pursuant to a November 3, 2023, First Amended Cross-Complaint ("FACC") alleging claims of legal malpractice, breach of contract, and breach of fiduciary duty arising from allegations that Mr. Bare engaged in conduct amounting to these violations in his representation of Ms. Cephus in the underlying action.

Now before the Court is Ms. Cephus's opposed motion for leave to file a Second Amended Cross-Complaint ("SACC").

Motion for Leave to

Amend

a.

Legal Standard

California Code of Civil Procedure

section 473, subdivision (a)(1) provides, in relevant part: "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code."

Under California Rules of Court

Rule, rule 3.1324, subdivision (a), a motion to amend a pleading shall:

(1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;

(2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and

(3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

Under California Rules of Court,

rule 3.1324, subdivision (b), a separate declaration must accompany the motion and must specify:

(1) The effect of the amendment;

(2) Why the amendment is necessary and proper;

(3) When the facts giving rise to the amended allegations were discovered; and

(4) The reasons why the request for amendment was not made earlier.

“This discretion should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit.” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047 (*Kittredge Sports*).)

California courts will not ordinarily consider the validity of a proposed amended pleading in ruling on a motion for leave to amend given that any grounds for a demurrer or a motion to strike will be premature at that time. (See *California Casualty General Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 280-281 (*California Casualty*), citations omitted, overruled on other grounds by *Kransco v. American Empire Surplus Lines Ins. Co.* (2000) 23 Cal.4th 390, 403-406; see also *Kittredge Sports*, *supra*, 213 Cal.App.3d at p. 1048 [Where “the proposed legal theory [at issue] is a novel one, ‘the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings’”], quoting *California Casualty*, *supra*, at p. 280.)

Even if a good amendment is proposed in proper form, a long, unwarranted and unexcused delay in presenting it may be a good reason for denial. (*Roemer v. Retail Credit Co.* (1975) 44 Cal.App.3d 926, 939-940 (*Roemer*).) In most cases, the factors for timeliness are: (1) lack of diligence in discovering the facts or in offering the amendment after knowledge of them; and (2) the effect of the delay on the adverse party. (*Id.* at p. 940.) If the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party, the judge has discretion to deny leave to amend. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.) Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, or added costs of preparation such as an increased burden of discovery. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.)

b. Discussion

Cross-Complainant Michelle Cephus

brings the present motion for leave to file a SACC adding three new causes of action to her pleading: fraud and intentional misrepresentation; fraudulent concealment; and intentional infliction of emotional distress. The new claims are premised on the idea that in April 2026, Ms. Cephus first obtained evidence showing that Mr. Bare failed to raise a jurisdictional challenge in the underlying action inconsistent with his litigation plan as shared with Ms. Cephus, an omission that was known to Ms. Cephus from the onset but for which she did not have evidence until April 2026. (See Motion, p. 3 [final paragraph].)

In opposition Mr. Bare argues that the motion is belated, coming nearly three years after the FACC was filed, with various trial dates having come and gone, where the three new causes of action are not based on new information, but rather, are based on a mischaracterization of the underlying record, where amendment would prejudice Mr. Bare.

No reply appears in the record.

After review, the Court finds in favor of Mr. Bare.

First, the Court is not satisfied that Ms. Cephus's motion satisfies the requirement to provide "reasons why the request for amendment was not made earlier." (Cal. Rules of Court, rule 3.1324(b)(4).) The fact that Ms. Cephus did not have, at the time she first filed her Cross-Complaint, evidence to show that Mr. Bare acted inconsistently with representations he made during the pendency of the underlying action does not change the fact that she appears to have had reasonable grounds, at the time she filed her initial Cross-Complaint, to believe that Mr. Bare's conduct had injured her in the manner described in her present motion. This unexplained and unjustified delay constitutes an independent basis for denying leave to amend. (Roemer, *supra*, 44 Cal.App.3d at pp. 939-940.)

Moreover, the proposed amendment would substantially expand the scope of this litigation by adding three new intentional tort causes of action after this action has been pending for several years. Allowing amendment at this stage would likely require additional written discovery, depositions, expert analysis, and motion practice, thereby

increasing litigation costs and further delaying resolution of the case. Such prejudice weighs against granting leave to amend. (Magpali, supra, 48 Cal.App.4th at pp. 486-488.)

c. Conclusion

Accordingly, Cross-Complainant, Michellei Cephus's motion for leave to amend is DENIED.

Cross-Complainant, Michellei Cephus, is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.